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Submitter Information

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[REDACTED]

General Comment

See attached file(s)

Attachments

Letter on Gen-AI Legal Permissions

March 14, 2025

From:

Thomas Edward Beck

Freelance Feature Author, Novelist

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who works freelance by writing features for online outlets in the publishing and entertainment industries. I have worked hard for years to develop the skills and knowledge to build my portfolio, regularly drafting private features throughout high school and moving on to commercial and academic writing in university. I was hopeful about my future as a writer and as someone who could contribute to the publishing industry under various other positions—until I graduated university. Not only is the dire state of the job market preventing me, a qualified writer, from getting any interviews out of the over one hundred job applications I have sent, the job market for writers and editors in my field are overrun with generative-AI based positions replacing listings which previously did not call for generative-AI and which offered more reasonable compensation. Moreover, the very data used in the models that are being weaponized to strip publishing industry workers of their paychecks and limit their work are trained on legally-protected data—much of which is the work of our very own industry veterans. Because of this crisis, I am severely limited in my ability to contribute to our country through both work and economy, and I am but one of tens of thousands. These days, I have taken up a part-time job out of necessity. I contribute not what I am talented and trained in, but something less valuable. Anyone could see how this situation is frustrating and undeserved, but if my pathos fails to reach you, there still exist a plethora of reasons why generative-AI should not be permitted to train on protected material under the law.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands upon thousands of American small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of millions of Americans and give it away to the tech sector by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.